TENTATIVE RULINGS

DEPARTMENT N17

Judge Craig L. Griffin

Date: June 29, 2026
Time: 2:00 PM

If you are submitting to the tentative, please call the Clerk at (657) 622-5617.

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1	CardFlex, Inc. vs. ABN Network, LLC	Plaintiff Cardflex, Inc. d/b/a Cliq's ("Plaintiff") unopposed Motion to Enforce Settlement Agreement ("Motion") is **DENIED without prejudice**. Plaintiff moves the court for entry of judgment based upon a settlement agreement ("Agreement") entered between Plaintiff and defendants ABN Network, LLC dba Quick Health, Inc.; Shannon Kroemmelbein; Digital Bridge Network Corporation; Digital-Bridge, LLC; and Allan Redmond ("Defendants" together). (Simon Decl., Ex. A.) Plaintiff requests the court order Defendants to pay $2,181,613.32 to Plaintiff on the Agreement. In reviewing the Agreement, Plaintiff failed to comply with some key terms. First is that notice of any issues related to the Agreement must be both mailed overnight and emailed to Defendants. (Simon Decl. 4, Ex. A § 12.) While Plaintiff emailed and overnighted the demand to defense counsel, Plaintiff was notified by (now former) defense counsel he no longer represented any of the Defendants. (Simon Decl. ¶¶ 4-5, Exs. B-D.) Plaintiff then only emailed a copy of the demand to the email addresses provided by former defense counsel, but did not overnight the demand. (Simon Decl. ¶ 6.)

		As for the Motion itself, Plaintiff email served the individual defendants at their personal email addresses and email served the corporate entities at their former defense counsel's office. Emailing the defendants is improper as none of them have consented to receive email service, and notice to former counsel is improper as to the corporate entities as they are no longer represented by former defense counsel. Regarding the requested late fees of $480,000, the Agreement requires Plaintiff to send a written notice of payment default to Defendants if Plaintiff does not receive any specific installment payments. (Simon Decl., Ex. A § 2.) Defendants then have the opportunity to cure each default and avoid late penalties if they pay within the two day cure period. Here, Plaintiff did not provide any evidence of proper notice to Defendants of the defaults and the cure payment periods given the demand was served on former defense counsel and not on unrepresented Defendants themselves. As such, it does not appear the $480,000 can be added onto the judgment at this time due to lack of notice and lack of the ability to cure. As Plaintiff has not produced evidence it has complied with the requirements of the Agreement and service of the Motion, the Motion is denied without prejudice. Plaintiff to give notice.
2	Morales v. General Motors LLC	The motion for attorneys' fees, costs and expenses filed by plaintiff Dennis Morales (Plaintiff) is **GRANTED IN PART**. Plaintiff is awarded attorney fees, costs and expenses against defendant General Motors, LLC (Defendant) in the total amount of **$26,905.46**, comprised of $24,487.50 in fees plus $2,417.96 in costs and expenses. A court assessing a claim for fees under Civil Code section 1794, subdivision (d) is to use the lodestar as the start, to assess the reasonableness of the fee claim. (*Mikhaeilpoor v. BMW of North Americ*a (2020) 48 Cal.App.5th 240, 246-247.) The party claiming fees has the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and reasonable in amount. (Ibid; *Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 816.) "In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (*Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564.) With regard to the determination of a reasonable hourly rate, the court may rely on its own knowledge and familiarity with the legal market as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation